



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

116

CRM-M-33760-2026

Date of Decision.:15.06.2026

Imran

.....Petitioner

Vs.

State of Punjab

.....Respondent

CORAM:- HON'BLE MR. JUSTICE DEEPAK GUPTA

Present:- Mr. Gaurav Goyal, Advocate
for the petitioner (through VC).

DEEPAK GUPTA, J. (ORAL)

By way of this petition filed under Section 483 read with Section 528 of the BNSS, 2023 (corresponding to Section 439 read with Section 482 Cr.P.C.), petitioner prays for grant of interim bail in case FIR No.63 dated 23.03.2019 registered under Sections 22, 25 and 29 of NDPS Act, 1985 and Sections 318(4), 336(2), 338, 336(3), 340(2) of BNS, 2023 (Sections 420, 465, 467, 468, 471 of the IPC, 1860) at Police Station Sardulgarh, District Mansa.

2. It is contended by learned counsel that maternal uncle Babu Qureshi of the petitioner has expired on 25.03.2026 as per Death Certificate (Annexure P-2) and that necessary religious ceremonies are required to be performed, which are scheduled during Mohram from 18.06.2026 to 26.06.2026. It is admitted that petitioner being a close relative, being the sister's son of the deceased is required to be present in the ceremony.

3. It may be noticed that earlier the petitioner had filed CRM-M-59183-2025 seeking regular bail and that petition was disposed of by this court on 07.11.2025. Operative portion of the order is as under:-



“4. Having heard learned counsel for the petitioner as well as learned State counsel, as the petitioner is in custody for the last more than 4 years and 6 months, the instant petition stands disposed off with a direction to the Trial Court to expedite the conclusion of trial preferably within a period of 3 months from the next date of hearing fixed before it. If the trial Court fails to conclude the trial within the stipulated period, then the petitioner would be at liberty to move an appropriate application seeking grant of bail before the Trial Court. Upon such application being filed, the Trial Court shall release the petitioner on bail subject to his furnishing requisite bonds to its satisfaction by imposing such condition that his presence can be secured during the trial as the petitioner is in custody for the last more than 4 years and 6 months. It is made clear that if the delay in the trial is caused on the part of the petitioner/accused or other co-accused to help him to get bail, then he shall not be entitled for the aforesaid relief.”

4. It is revealed further from the order dated 29.04.2026 (Annexure P-3) of the trial Court that after passing of the above order dated 7.11.2025 by this Court, matter was adjourned on several dates from 01.12.2025 to 19.01.2026 for defence evidence, if any and for arguments, but on every date of hearing, it is the defence side, which took the adjournment. Thus, trial court declined the bail as it had been made clear by this Court that if delay in the trial is caused on the part of the petitioner/accused or any other accused to help him to get the bail, then he shall not be entitled for the aforesaid leave.

5 Since the case is already at the stage of defence/arguments and the petitioner and co-accused appears to be intentionally not closing the defence evidence, therefore, this Court is not inclined to release him on interim bail simply for the reason that his maternal uncle has expired. Learned counsel for the petitioner has failed to convince this Court as to how the presence of the petitioner is required in the religious ceremony to be performed on the death of his maternal uncle.

CRM-M-33760-2026

-3-

6. As such, holding the present petition to be devoid of any merit, the same is hereby dismissed.

(DEEPAK GUPTA)
JUDGE

June 12, 2024

Neetika Tuteja

Whether Speaking/reasoned	Yes/No
Whether Reportable	Yes/No